

1.

CASE #	CASE NAME	HEARING NAME
CVRI2300429	MENDEZ NUNEZ VS BOMBAY PARTNERS V ONTARIO, LLC	MOTION TO COMPEL DEFENDANT KPRS CONSTRUCTION SERVICES, INC. TO PROVIDE RESPONSES TO REQUEST FOR PRODUCTION, SET TWO

Tentative Ruling:

The unopposed motion to compel is granted. Defendant KPRS Construction Services, Inc. is ordered to provide verified responses to the demand for production of documents, set two, without objections, and produce responsive documents within twenty (20) days of service of this Court's signed order or notice of ruling, whichever is sooner.

Court further imposes a monetary sanction against Defendant KPRS Construction Services, Inc. and counsel of record, jointly and severally, in the amount of \$1,110 (3 hours at the rate of \$350 per hour, plus \$60 filing fee), to be made payable through defense counsel Harry Nalbandyan at Levin & Nalbandyan within thirty (30) days of service of this Court's signed order or notice of ruling, whichever is sooner.

The Court denies the request for terminating, evidentiary, and issue sanctions.

The Court further denies without prejudice the request for a jury instruction concerning Defendant's discovery noncompliance.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than July 6, 2026, by 5:00 p.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2300429	MENDEZ NUNEZ VS BOMBAY PARTNERS V ONTARIO, LLC	MOTION TO COMPEL DEFENDANT KPRS CONSTRUCTION SERVICES, INC. TO PROVIDE RESPONSES TO SPECIAL INTERROGATORY, SET TWO

Tentative Ruling:

The unopposed motion to compel is granted. Defendant KPRS Construction Services, Inc. is ordered to provide verified responses to the special interrogatories, set two, without objections, within twenty (20) days of service of this Court's signed order or notice of ruling, whichever is sooner.

Court further imposes a monetary sanction against Defendant KPRS Construction Services, Inc. and counsel of record, jointly and severally, in the amount of \$1,110 (3

hours at the rate of \$350 per hour, plus \$60 filing fee), to be made payable through defense counsel Harry Nalbandyan at Levin & Nalbandyan within thirty (30) days of service of this Court's signed order or notice of ruling, whichever is sooner.

The Court denies the request for terminating, evidentiary, and issue sanctions.

The Court further denies without prejudice the request for a jury instruction concerning Defendant's discovery noncompliance.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than July 6, 2026, by 5:00 p.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400639	RODRIGUEZ VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GM does not challenge the hourly rates sought by Plaintiff's counsel. The Court finds the rates reasonable. Plaintiff submitted evidence showing approval of the same rates in Riverside County and approvals by other California Superior Court judges and market data from the 2023 Real Rate Report. (Nita Decl. ¶¶ 21–23, Exs. D–R; Nita Suppl. Decl. ¶¶ 3–4, Exs. A–B.) Thus, the Court approves the hourly rates as requested.

Plaintiff seeks to recover \$18,226.00 in fees for 46.3 hours of work. (Nita Decl. ¶ 5, Ex. A.) GM objects on a category-by-category basis, which are addressed in turn below.

Pre-Engagement Work (1.2 hours/\$370.00)

GM seeks to exclude 1.2 hours (\$370.00) billed for work performed on December 8, 11, 2023, and January 5 and 8, 2024—before the representation agreement was executed on January 9, 2024. The billing entries include intake call with client obtaining initial information (0.3 hours at \$150); sending initial email to client to request documents (0.1 hours at \$150); processing initial documents (0.2 hours at \$150); processing additional documents (0.2 hours at \$150); and reviewing documents, analyzing vehicle information, summarizing repair history and facts, communicating with client, and providing instructions to legal assistant (0.4 hours at \$625). (Nita Decl. ¶ 5, Ex. A at 1.) Plaintiff responds that these tasks are fundamental to any plaintiff law firm, involve standard intake procedures, and fall within the statutory phrase “commencement and prosecution” of the case under Civ. Code § 1794(d).

The Court finds that reasonable intake time is compensable as part of “commencement” of the action. (Civ. Code § 1794(d).) Time spent gathering information from a prospective client who will become a client, reviewing that information to assess the viability of representation, and taking initial steps to organize the case file is directly related to commencing the action. **No reduction is warranted.**